

Tax Map and Parcel No.: 335-8.00-36.07 (Units 703, 707 & 708)

Prepared by and Return to:

Jonathan E. Horner, Esquire
20184 Phillips Street
Rehoboth Beach, DE 19971

SECOND AMENDMENT TO
SUPPLEMENTAL RESIDENTIAL HOUSING RESTRICTION FOR DUTCHMAN'S
HARVEST

THIS SECOND AMENDMENT to the Supplemental Residential Housing Restriction for Dutchman's Harvest (the "Amendment") is made as of the 4 day of September 2025, by LEWES ATTAINABLE HOUSING, LLC, a Delaware limited liability company, having an address of 18949 Coastal Highway, Unit 301, Rehoboth Beach, DE 19971 (the "Declarant").

RECITALS

WHEREAS, Declarant previously established the Supplemental Residential Housing Restriction for Dutchman's Harvest (the "Condominium") pursuant to that certain Supplemental Residential Housing Restriction for Dutchman's Harvest dated the 26th day of June, 2025 and recorded in the Office of the Recorder of Deeds in and for Sussex County, State of Delaware ("Recorder's Office") in Deed Book 6326, Page 201, together with all amendments thereto, (collectively the "Supplemental Restriction"); with respect to certain property owned by the Declarant and located in Lewes, Sussex County, State of Delaware, as described in Exhibit A of the Supplemental Restriction.

WHEREAS, Declarant desires to amend the Supplemental Restriction to include additional condominium units to be bound by the terms and conditions of the Supplemental Restriction.

WHEREAS, on or before the recordation of this Amendment in the Recorder's Office, Declarant has filed in the Recorder's Office that certain Amended Declaration Plan, Amendment No. 2, Condominium Declaration Plan Building 7 Dutchman's Harvest, Lewes and Rehoboth River Hundred, Sussex County, Delaware, prepared by Davis, Bowen & Friedel, Inc. dated 8/28/25 in Plot Book 459, Page 19 (the "Unit 701-710 inclusive Declaration Plan") and Declarant has filed in the Recorder's Office that certain Second Amendment to the Declaration dated 9-4-25 in Book 6365, Page 340 to create Units 701 through 710, inclusive and the Second Amendment to the Residential Housing Restriction For Dutchman's Harvest dated 9-4-25 in Book 6366, Page 1 to add Units 701 through 710, inclusive.

WHEREAS, all capitalized terms not defined herein shall have the respective meanings set forth in the Supplemental Restriction as amended by this Amendment.

NOW, THEREFORE, witnesseth:

1. **Ratification.** The Declarant ratifies and restates the following:

(A) The Units that are the subject of this Amendment are subject to the purposes and restrictions set forth in the Supplemental Restriction.

(B) The foregoing Recitals are incorporated herein and made a part of this Amendment.

2. **Amendment to Supplemental Restriction.** The Supplemental Restriction is hereby amended to include additional Units, specifically Units 703, 707, and 708. These Units shall be subject to all terms, conditions, covenants, and restrictions set forth in the Supplemental Restriction. For the avoidance of doubt, the definition of "Unit" is hereby deleted in its entirety and replaced with:

"Unit" means a Unit as defined by 25 Del. C. §81-103(48) and as created pursuant to the Master Declaration for Dutchman's Harvest Condominium. There will be a total of one hundred forty (140) Units built within the Property and a total of fourteen (14) Enhanced Restricted Units, currently being Units 103, 105, 106, 108, 603, 606, 608, 703, 707, and 708.

3. **Ratification of Declaration.** The Supplemental Restriction remains in full force and effect, as amended and modified by this Amendment.

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IN WITNESS WHEREOF, the Declarant has hereunto set its hand and seal the day and year first above written.

Signed, Sealed And Delivered
In The Presence Of:

Lewes Attainable Housing, LLC, a Delaware
limited liability company

Kathleen O'Neil
Witness

By: Jaime I. Zolper (Seal)
Name: Jaime I. Zolper
Title: Authorized Signatory

STATE OF DELAWARE)
) SS
SUSSEX COUNTY)

BE IT REMEMBERED that on this 4 day of September, 2025, came before me, the Subscriber, a Notary Public in and for the State and County aforesaid, Jaime I. Zolper, as Authorized Signatory of Lewes Attainable Housing, LLC, a Delaware limited liability company, on behalf of said company in its capacity as party to this Indenture, known to me personally to be such, and acknowledged this Indenture is the act and deed of such company.

GIVEN under my Hand and Seal of office, the day and year aforesaid.

Coleene Bradney
Notary Public or Notarial Officer

